

CHAPTER 38.

An Act to amend the Steam Trawling (Ireland) Act, 1889.
[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) Every person who uses any trawl net or any method of fishing in contravention of any byelaw of the Department of Agriculture and Technical Instruction for Ireland (in this Act referred to as the Department) made in pursuance of section three of the Steam Trawling (Ireland) Act, 1889 (in this Act referred to as the principal Act), shall be liable, on conviction under the Summary Jurisdiction Acts, to a fine not exceeding one hundred pounds, and every net used or attempted to be used in contravention of any such byelaw and every rope, warp, tackle, beam, pole, iron and other thing fastened to or used with any such net shall be forfeited and may be seized by any duly authorised officer of the Department or any officer appointed by the Department for the purposes of the Fisheries (Ireland) Act, 1842, and shall, when seized, be dealt with, subject to the provisions of this Act, in the manner provided by section one hundred and three of the said Act of 1842, and for the purpose of such seizure any such officer may go on board any vessel propelled by steam employed in fishing.

Penalty for
illegal
trawling.

52 & 53 Vict.
c. 74.

5 & 6 Vict.
c. 106.

(2.) If the person to whom a summons under the principal Act is directed cannot be conveniently met with, it shall be deemed sufficient service of such summons upon him if a copy thereof is left for him at the usual place of abode or place of business, the same being within the United Kingdom, of the owner of the vessel on which such person was when the offence was committed.

(3.) The court before whom a person is convicted under this Act may by the order provide that, if the fine imposed upon him is not paid within eight days after the conviction, one-half thereof shall be paid by, and may be recovered under the Summary Jurisdiction Acts from, such owner as aforesaid and that, in default of payment, by the person convicted, of the remainder of the said fine within a further period of eight days, the same may be recovered from him under the said Acts:

Provided that any sum paid by the owner under this enactment may be recovered by him as a debt from the person convicted.

(4.) Every sum of money levied as a fine or arising from the sale of anything ordered to be sold, in pursuance of the principal Act as amended by this Act, shall be paid to the Department and shall be applied for the purposes of sea fisheries as defined by the Agriculture and Technical Instruction (Ireland) Act, 1899.

62 & 63 Vict.
c. 50.

5 & 6 Vict.
c. 106.

(5.) Section eighty-nine (which relates to the powers of officers) and section ninety-six (which relates to the jurisdiction of magistrates of maritime counties) of the Fisheries (Ireland) Act, 1842, shall apply with the necessary modifications for the purposes of the principal Act as amended by this Act.

(6.) Subsection (2) of section three of the principal Act is hereby repealed.

Short title and
citation.

2. This Act may be cited as the Fisheries (Ireland) Act, 1901, and may be cited with the Fisheries (Ireland) Acts, 1842 to 1898.

CHAPTER 39.

An Act to make further provision for the Construction of Works in the United Kingdom and elsewhere for the purposes of the Royal Navy. [17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Issue of money
for works
mentioned in
schedule.

1.—(1.) In addition to any sum authorised to be issued under any other Act, the Treasury shall issue out of the Consolidated Fund or the growing produce thereof such sums, not exceeding in the whole six million one hundred and fifty-seven thousand pounds, as may be required by the Admiralty for defraying the cost of the works specified in the schedule to this Act, subject to the terms and conditions in sections three and five of the Naval Works Act, 1896; and those sections and section five of the Naval Works Act, 1895 (which relates to the mode in which money may be raised), shall be construed as if they were herein re-enacted and in terms made applicable to this Act.

59 & 60 Vict.
c. 6.

58 & 59 Vict.
c. 35.

(2.) The Treasury may borrow under the said section five of the Naval Works Act, 1895, any sums which have been issued out of the Consolidated Fund for the purpose of the Naval Works Act, 1896, or the Naval Works Act, 1897, and which the surplus set aside under section four of the Naval Works Act, 1896, was not sufficient to pay.

60 & 61 Vict.
c. 35.

(3.) The Bank of England may lend any money which the Treasury are authorised to raise under this Act.

Short title.

2. This Act may be cited as the Naval Works Act, 1901.